

GAHC040000962019



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)
(ITANAGAR BENCH)

Case No. : Crl.Rev.P. 4/2019

1:THE STATE OF AP

VERSUS

1:SHRI TAKENG PULLOM
S/O LT. TSERING PULLOM, R/O VILL. SAJEGONG, PO MONIGONG PS
MECHUKA, DIST. WEST SIANG,A P.

Advocate for the Petitioner : P P of AP

Advocate for the Respondent : MS.H Jeram

BEFORE
HONBLE MR. JUSTICE MICHAEL ZOTHANKHUMA
HONBLE MR. JUSTICE S.K.MEDHI

ORDER

Date : 17-02-2020

Heard Mr. J. Tsering, learned Addl. Public Prosecutor for the revision petitioner, i.e. State of Arunachal Pradesh. Also heard Mr. T.T. Tara, learned Amicus Curiae.

The revision petition has been filed against the impugned judgment dated 14.12.2015, passed by the Court of the Addl. Sessions Judge, Basar, West Siang District in Basar Sess Case No. 791/2012, arising out of Mechuka PS Case No. 10/2009, by which the respondent has been convicted under Section 302 IPC and sentenced to undergo 12 years Rigorous Imprisonment with a fine of Rs. 10,000/-, in default Simple Imprisonment for another 6 (six)

months.

The learned counsel for the revision petitioner submits that the sentences that can be imposed under Section 302 IPC is death or imprisonment for life. He submits that as the Indian Penal Code has provided for only 2 types of sentences, the learned Sessions Court was in error in sentencing the appellant to undergo only 12 years Rigorous Imprisonment.

The learned Amicus Curiae submits that the Appellate Court can pass a sentence, which is not in consonance with Section 302 IPC only, after it records a finding that the conviction cannot be made under Section 302 IPC.

We have heard the learned counsels for the parties.

In the case of ***Bharatkumar Rameshchandra Barot v. State of Gujarat***, reported in ***2018 SCC Online SC 272***, the Apex Court has held at para 27 as follows:

“27. Any punishment less than the life imprisonment, as prescribed under Section 302 IPC, if awarded by any Court is per se illegal and without authority of law. Indeed, there is no such discretion left with the Court in awarding the punishment except to award the punishment which is prescribed under Section 302 IPC as mentioned above.”

Section 302 IPC states as follows:

“302. Punishment for murder – Whoever commits murder shall be punished with death, or [imprisonment for life], and shall also be liable to fine.”

As the sentences to be imposed provided under Section 302 are of 2 types, we find that the learned Trial Court could not have passed the impugned sentence of 12 years Rigorous Imprisonment. The sentence imposed by the learned Trial Court is not sustainable and the same is accordingly set aside. As there is no appeal filed by the respondent against the impugned judgment and as the only question to be decided in the present revision petition was with regard to the legality of the sentence imposed, we are accordingly of the view that the lesser sentence of Life Imprisonment should have been imposed upon the appellant, at the very least.

Accordingly, as the appellant has already been convicted under Section 302 IPC, the appellant is sentenced to undergo Life Imprisonment with a fine of Rs. 10,000/-, in default

Simple Imprisonment for 6 (six) months. Consequently, the impugned judgment dated 14.12.2015 passed by the Court of the Addl. Sessions Judge, Basar, West Siang District in Basar Sessions Case No. 791/2012 is modified to the extent indicated above.

Revision petition is accordingly disposed of.

In appreciation of the assistance provided by the learned Amicus Curiae, his fee is fixed at Rs. 7,500/- to be paid by the Arunachal Pradesh State Legal Services Authority.

JUDGE

JUDGE

Comparing Assistant